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Subject File #26

Notes on the conversation held between
Sardar Swaran Singh and Marshal Chen Yi.

Sardar Swaran Singh called on Mr. Chen Yi at Rashtrapati Bhavan at 10.40 a.m. on the 22nd April, 1960. Mr. Chen Yi was assisted by Mr. Chang Han-fu, Vice-Foreign Minister.

Sardar Swaran Singh: Yesterday's talks had been very useful in understanding the Chinese viewpoints on various aspects of the situation facing the two countries. You had previously referred to the Sino-Burmese and Sino-Nepalese agreements on border disputes. We have seen the press reports on these agreements but it would be helpful if Your Excellency gave us a little background of these new agreements made by China with Burma and Nepal.

Mr. Chen Yi: Mr. Chang Han-fu will elaborate on these. He would only like to speak about the following points which came up last night in the discussion with Mr. R.K. Nehru. In the frank and friendly talks which we had Mr. R.K. Nehru raised the following point towards the end which needs some elaboration. The point made by Mr. R.K. Nehru was that the place in Ladakh where the incident took place was about 3,000 sq. miles from Peking. On the other hand, it was only 200 miles or so from Delhi. This had naturally perturbed Indians and made them think about their own security. It was important that there was a solution based on honour and self-respect of the two countries friendly to each other. Now, I would like to talk about this point since our Indian friends feel uneasy about it.

The United States is 6,000 to 7,000 kilos away from China. Yet it has military bases all

around China and the Seventh Fleet in the Western Pacific and there are guided missiles and atomic warheads in the area also. They want to attack China because they are imperialists and we are a communist country.

India and China have always had brotherly relations. It is not possible with our two countries, be they far or be they close, to threaten each other. The imperialists, however, far away though they may be, still threaten us. It is inconceivable for one party to attack another. The apprehensions in the minds of each other must be removed. If China attacks India, the whole world would support India and if India attacks China, the whole world would support China.

The imperialism and colonialism are our common enemies. Prime Minister Nehru has said in Parliament that China and India would not go to war over the border issue. We fully support this.

The press in the Western countries in a provocative manner writes that since China is now strong and is "powerful, therefore, it wants to expand. This is "an imperialist plot. Chinese population would be about 800 millions in another 10 years. To settle all its problems, China would need several decades. China, as a matter of fact, is still very backward.

I went round Delhi this morning and found that your progress in the field of construction is very good. It is no worse to ours. We have built schools, factories etc. but we have built very little residential accommodation but it is not as good as you have. 99

The main reason why we have been able to find a settlement with Burma and Nepal is that we

are friends. We are friends and we are at ease with each other. At the present time, we may discuss various ways of settling the problem between us but the most important is to give our hearts to each other, to be always friendly towards each other and remove the suspicion existing between our two countries, as also to dispel the dark clouds, as Prime Minister Nehru put it. Mr. R.K. Nehru's reference to the problem of Indian security had made me very uneasy. We must be at ease with each other and should not think that India would attack China and, therefore, China should build bases in Tibet or China would attack India and, therefore, India should strengthen its defences in the Northern border. This would be foolish for both. If our two countries are friendly and settle the disputes in a friendly manner, it would be useful to the world. We could have a treaty of friendship for 10, 20 or 40 years. The boundary question can be referred to a boundary committee for settlement and it can definitely be settled.

While discussing the agreements with Burma and Nepal, we asked them if they had any fears of aggression. They frankly replied that some of them were not completely at ease. We answered: As far as we are concerned, we are not afraid of them because they were small. But, suppose, if they have foreign military bases on their soil, we would naturally be concerned. If you consider the principles of the treaties which we had with Burma and Nepal as the suitable base for bringing about a settlement, then it would be an example to the world. *as*

Sardar Swaran Singh: So far as we in India are concerned, we are conscious of the problems of economic development which we have to face. We are engaged in a

struggle to develop our economy and raise the living standard of our people. The second point which I would like to make is with reference to the attitude of the Western press towards increasing strength of China. We in India feel very happy that we hear of Chinese increase strength. We know that ~~if~~ both of our countries face our own problems. If China overcomes those problems, then Chinese example inspires hopes and confidence that we would also be able to do it. It would not be a clear assessment of our position to say that we are not happy to know about your strength.

CY: We have made no such assessment. Mr. R.K. Nehru stressed the security aspect and that is what has made me say about all these apprehensions. We feel that if India is strong, China is more secure and if China is strong, India would also feel more secured.

Sardar Swaran Singh: We follow a policy of non-alignment and we feel that strength of India will be regarded as helpful to China.

CY: Some Indians have been putting pressure on Prime Minister Nehru to give up the policy of non-alignment. But he has stood resolute and firm.

Sardar Swaran Singh: No amount of pressure can make Indian Prime Minister change his policy of non-alignment. It would be misjudging Indian sentiments and the sentiments of the Indian Prime Minister if one thought that India would give up its policy of non-alignment. We think that it is good for us and for the world also if we follow the policy of non-alignment. There is no question of our deviating from this.

You rightly stressed the need for mutual confidence and faith among the governments and the

peoples of both the countries.

There is no use hiding the fact that the recent unpleasant incidents, of which I do not want to discuss the case, have definitely shaken the confidence of people. It is all to the good that Mr. Chen Yi and his colleagues are doing their best to repair the damage and to restore confidence. There is no doubt that confidence is a matter of experience and not argument.

CY: Yes, yes.

Sardar Swaran Singh: Since we became free and China was liberated, in our relationship we all along proceeded in an atmosphere of faith and confidence. You referred to the treaty of friendship. We felt that arrangements agreed upon between the two countries on the principles of panchsheel was the best which could be between two independent countries. We were all the time busy in developing our country. We were never worried about our northern frontier. Suddenly we found ourselves in a situation where our original calculations and original ideas were rudely shaken. It is not my intention to go into the details of the incident as that is not necessary. We are aiming to restore friendly and normal relations and confidence among the two countries. It is with reference to Your Excellency's reference regarding confidence. Coming as it does from a person of Your Excellency's eminence, it is reassuring to note that the policy of mutual friendship and development of greater understanding is going to be pursued in a strengthening the relations between the two countries.

Actually it is not my intention to get details of the agreements made by China with Burma and

Nepal. I am only trying to understand better the background about these agreements which may not have come to our knowledge from newspapers.

Mr. Chang Han-fu: Just as the Vice-Premier has said about the background of the Sino-Burmese and Sino-Nepalese agreement, the most important thing is that both Burma and Nepal have friendly relations and adhered to the Five Principles of Co-existence based on trust, friendship, non-aggression, mutual understanding and mutual accommodation. There were mutual understanding and mutual accommodation and, therefore, the boundary question could be settled smoothly on a satisfactory basis for both. There is no need to go into the details of the two agreements as they have been published but I would only mention the following.

Part of the Sino-Burmese border from the high conical peak to the westernmost point concerns the so-called MacMahon Line; all the Chinese Governments, including the People's Republic of China, have not recognised this illegal line. This position was made clear to the various Burmese Governments and the various Burmese Governments and its leaders have sympathised and understood this point. Therefore, China and Burma took a realistic attitude ~~and~~ while discussing this problem. In our documents with Burma, no mention of the so-called MacMahon Line has been ~~mentioned~~ made. China having clarified this point and Burma having understood and sympathised with it, it was easier to bring about a settlement which is reasonable and practical. China did not recognise the MacMahon Line and the Burma understood the position and, therefore, we had a treaty of friendship.

CY: Neither of the two parties mentioned

the MacMahon Line. It was forced by the imperialists but while drawing the boundary line, we base it on actual jurisdiction of the two parties, watershed, survey etc.

Sardar Swaran Singh: When the principles are settled, survey etc. are mechanical process.

CY: I must make it clear that we do not recognise the MacMahon Line. We did not want to take great parts of Burmese territory south of this line. The Burmese Government also understood clearly that the MacMahon Line was not mentioned and there would be local adjustments of boundaries based on survey, etc. Non-recognition of the MacMahon Line did not mean China extending her claims over any territory. The Burmese Government understood the Chinese non-recognition of MacMahon Line and were not apprehensive. The Sino-Burmese boundary is to be drawn on the basis of actual jurisdiction, geographical features, local adjustments etc.

Sardar Swaran Singh: Local adjustments are no problem, if claims to a large chunk of territory are not kept alive.

CY: The question of territorial claims does not arise. Such claims are not friendly and if they are made, the negotiations would break down.

Sardar Swaran Singh: This is the biggest stumbling-block. In Chinese maps, large blocks of Indian territories are shown as parts of China.

CHF: On the other hand, we also see Indian maps and we think that India has taken Chinese territories.

Sardar Swaran Singh: If that is so, the position is most difficult.

CY: We are definite that China and India would find a line agreeable to both sides.

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Sardar Swaran Singh: I bless that time when we can agree in this spirit. The question is to uphold the honour and dignity of both the countries.

CY: Yes. This is not impossible. We can definitely find a line satisfactory to both the parties.

If both the parties agree on a new line, then both the countries would have new maps and all the old maps would go to the museum, including the MacMahon Line. On behalf of China, we can say that we have no intention to take away large chunks of Indian territory. It is definite that the Indian friends also did not want to take Chinese territory. But it is also definite that we cannot give up any Chinese territory. By patience and sincerity, a common line can be found.

Sardar Swaran Singh: I hope there is no feeling in Chinese mind that India had an eye on Chinese territory. We are content with Indian territory.

CHF: Your maps include Chinese territory in India.

Sardar Swaran Singh: We regard that as part of India.

CY: If we keep on disputing like this, there can be no result. With Burma we reached a settlement. China and Burma have a border of 600 ~~kms~~^{miles}. Both the countries carried on aerial survey and agreed on the Sino-Burmese border. We have not done any survey on the Sino-Indian border. If we go on disputing on maps, it is difficult to get results. The central question is ^{that} the principle guiding a settlement, should be based on friendship and governed by what Prime Minister Nehru and Prime Minister Chou do and not on British MacMahon. This does not mean that we want to take chunks of Indian territory, south of the Line under actual jurisdiction. We must do mutual survey and the actual line should be

drawn which would be found satisfactory to both the parties. We may not find a satisfactory line this year or the next year. The most important thing is our friendship. We have plenty of time to settle the matter. We thank the Burmese friends for not forcing the MacMahon Line. The Burmese are thankful to us for recognising the line of actual jurisdiction.

Sardar Swaran Singh: I am not enamoured of the name 'MacMahon'. You confirm it and call it 'Chou' Line.

CHF: The second point about the Sino-Burmese agreement is that in northern section there were three places -- Tierma, Hulong (?) - belonging to China but were under British occupation for more than 40 years. After Burma became independent, we said that those places belonged to us. The Burmese friends recognised our claim and that is a friendly attitude.

CY: When I was 15 or 16 years old, a high school student in Cheng-tu, when we came to know of British occupation of Tierma, we strongly protested against the Chinese Government allowing British to occupy it. After I became the Foreign Minister, if I could not recover Tierma, that would have been difficult for me. Our Burmese friends returned these areas and we are very happy and thankful to them. In return, we told the Burmese that the size of three villages returned by them might be discussed by a joint committee of both sides. The three villages may be confined only to a few ^{km} ~~kms~~ or the surrounding areas also taken, making it 100 ~~kms~~ ^{km}. China is willing to compromise on this matter, in the spirit of mutual accommodation.

Sardar Swaran Singh: That must have been a symbol.

CY: Only the three villages and not large areas round them. It was done in a spirit of ^umutual accommodation

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Burmese claim was also based on the claim of 40 years occupation but they gave it up. We also have not made any claim for large territories and, therefore, there had been an agreement.

Sardar Swaran Singh: Your feelings about these villages must be like that of Longzu for us.

CY: That is a specific matter.

Sardar Swaran Singh: I do not want to raise a specific matter.

CHF: Similar is the question of the 1941 Line.

This line is very long and was drawn by the KMT Government and the British between China and Burma. It was drawn at the time when China was engaged in its struggle for existence against Japan. The British took advantage of the position and forced an agreement prejudicial to China. Large tracts of Chinese territory were taken away. We told the Burmese that it was an unreasonable line but as it is already existing we can take this line as the basis and make some adjustments. The Burmese Government also agreed that adjustments should be made. Premier U. Nu said that this was an immoral line. Firstly, what is recognised by a treaty by the Central Government of China before will be recognised by us also. Of course, for this line a joint committee would make surveys and set up markers.

West of the 1941 Line, there is an area called Nam Wang, previously leased by the British from China at Rs.1,000/- per year. This was not recognised by the KMT Government who refused to receive Rs.1,000/- from the British. But the British refused to release this area. This area belongs to China but the Burmese have built a road through it. China considered the requirements of Burma and agreed to give up its right

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Pantay
Kung Mines

over this area. In exchange, Burma agreed to give China Thang lo and Thung Hung tribal areas. By 1941 Line, parts of these two tribes were separated from each other. The size of this area is to be settled by a joint committee. China also gave up its right to Lu/Pung Mines.

Sardar Swaran Singh: To help Burmese about their roads, an exchange of territory was agreed upon. The execution of lease does not alter Chinese sovereignty over the area.

CHF: Yes.

Sardar Swaran Singh: Was there any allegation made by the Burmese that along the border certain points were taken possession of by the Chinese authorities before an agreement was made?

CHF: There were always clashes among the people on the border areas and the various Burmese Governments have made correspondence about the same.

Sardar Swaran Singh: Was at any time it was suggested or alleged by the Burmese Government that any area, large or small, of Burmese territory was occupied by the Chinese?

CY: No. The Burmese Government only said that it was forced upon us in the past by the Imperialists and so, we have got to understand each other. My recollection is quite fresh about talks of settlement with U. Nu. At some places of the Sino-Burmese border, people have their residence on one side of the line while they have fields on the other side of the border. In the middle sector of the line, the position is very confused because the nationalities on both sides are the same. In certain sectors of the boundary where people of Kawa tribe (Burmese call

them Wa) live, before starting planting in their fields, they sacrifice a human head. Kavas on the Burmese side take a head from the Chinese side while those residing on the Chinese side take a head from the Burmese side. After the agreement was made, there was great rejoicing by people and tribes of both the sides on the border. We told the Burmese friends that after we have drawn the boundary line, any one living within the Chinese boundary could go over to Burma and we would not prevent them.

Another important aspect of the Sino-Burmese boundary agreement is that any disputes that may arise between the troops or civil personnel of both sides could be settled by the local authorities without referring to the Central Government. This is very happy. The Foreign Minister will have less work to do. And notes of protests will not have to go back and forth.

We are happy to give this true and factual account of the background of the Sino-Burmese boundary settlement. China and India are great countries and, therefore, their standard should be higher, at least the same as that in the settlement of the boundary question between China and Burma.

Sardar Swaran Singh: Your Excellency has referred to the Foreign Minister being bothered by protest notes on border questions. The Sino-Indian border, before the recent unfortunate incidents, was so quiet and friendly, as that was based upon mutual trust, confidence and the spirit of friendship. The first-hand account about the Sino-Burmese settlement is of great interest. In the absence of any suggestion of either side, at any rate of the Burmese side, of any Burmese territory being occupied by China, the

question of actual jurisdiction did not present any difficulty while dealing with the Sino-Burmese boundary dispute.

Was any principle agreed upon for actual date of determining jurisdiction?

CY: No. Only actual line of jurisdiction was not to be changed.

Sardar Swaran Singh: On the date of the agreement?

CY: Long-existing status quo. The question of occupation by other did not arise. Much of the Sino-Burmese border is not delimited. Only a small part was delimited. Only the British occupied Chinese territory of the three villages. The northernmost part of the boundary was drawn by MacMahon but the agreement was not based on it but was based on actual jurisdiction etc.

Sardar Swaran Singh: The actual jurisdiction is more or less the same as the MacMahon Line. So, the principles agreed upon more or less recognised that line.

CY: Not entirely. There are some small differences. For example, South of the line there are some temples of China and certain mountains growing Chinese herbs which are not wanted by Burma.

Sardar Swaran Singh: A small local adjustment could be made by friendly governments if there is a basic agreement between them.

CY: South of the so-called MacMahon Line on the Sino-Burmese border, there are Lama temples of Tibetans and some Tibetans are living there also. This area is not important either to China or to Burma. Some people in Burma spent money to bring some of these to Rangoon and said that the territory belonged to Burma. The Burmese Government did not allow this kind of thing and China also did not mind it.

If Burma wants to keep this territory, it would be all right. Our Tibetans can go to somewhere else to get their herbs.

Sardar Swaran Singh: In such cases, these local inconveniences could be removed by mutual adjustment without exchange of territories.

CY: As regards the background of the Sino-Nepalese agreement, Premier Koirala had a meeting with U Nu and Ne Win in Rangoon while on way to Peking. The Burmese leaders told him about the Sino-Burmese agreement. When Premier Koirala came to Peking there was a smooth settlement. The maps of the two parties were basically the same. The boundary is based on traditional, customary line. About ten places there are divergences which China may claim to belong to her while Nepal may also claim as their own. These questions would be referred to a joint committee.

Sardar Swaran Singh: It appears that the so-called MacMahon Line of the Sino-Burmese border followed a traditional, customary border in accordance with the natural geographical features and the principles agreed upon between the two parties yielded a line more or less in common with the so-called MacMahon Line.

CHF: Still there are some differences. The more important is that both the parties did not recognise the MacMahon Line.

CY: I would like to clarify a point about the MacMahon Line and the Simla Conference. The MacMahon Line was drawn in a secret exchange of notes between the British ~~and the~~ Imperial authorities and the Tibetan local government outside the Simla Conference and behind the Chinese Central Government. No Chinese Government has recognised the MacMahon Line

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or the Simla Conference. The Indian Government should sympathise with this point. Prime Minister Nehru has to look to the sentiments of 400 millions of Indians while Premier Chou has also to look to the sentiments of several hundred millions of Chinese. No Chinese Government has ever recognised the MacMahon Line. How can the Chinese People's Government do so now? The Simla Conference and the MacMahon Line are illegal. The Chinese Government representative only initialled that document and did not fully sign it. Afterwards, the Peking Government officially declared that it did not recognise the same. This has been mentioned in the Simla Conference documents. We cannot recognise the MacMahon Line or the Simla Conference and hope that the Indian friends would be clear about it. On the other hand, ten years have passed since China and India became free. You have civil administration, police and troops up to a line of actual jurisdiction. Chinese troops and civilian officials have also reached a line. The two independent countries can settle this problem and agree on a line based on history, custom etc. By not recognising the MacMahon Line, we do not make any large claims on Indian territory. Based on friendly attitude, we can come to a settlement equitable to both the parties. India and China should shake off the legacy of Imperialism and settle all boundary questions on a basis which is reasonable and satisfactory to both. We have declared repeatedly that we do not recognise the MacMahon Line. In making actual survey, we will find some discrepancies in actual line and the so-called MacMahon Line but such discrepancies would not be great. After we have drawn a line based on actual jurisdiction,

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historical data, surveys, etc. by mutual understanding we may call it Chou-Nehru Line or Peace and Friendship Line.

Sardar Swaran Singh: I do not intend to reiterate the Indian case on the so-called MacMahon Line. It has already been made clear in the notes and memoranda exchanged. But this distinction of initialling the map by the Chinese Government plenipotentiary and signing it is not quite clear to me. The result is the same whether it is initialled or signed. It shows that the decision was known, and so operative. I am not saying this in a legalistic or argumentative spirit but only am pointing ~~it~~ out this aspect.

As regards India's attitude towards Imperialists and Imperialism, there should be no doubt in Chinese minds. We have fought against Imperialism to gain our freedom and today we stand against Imperialism all over the world. Certain obligations flow from historical agreement made by the predecessor government. I may not like that predecessor government in India and you do not like that predecessor government in China. But certain obligations flow from previous agreements and they have to be honoured.

CY: Yes. The 1941 Sino-Burmese line was recognised by the official Government of China. By this over 600 ~~kms.~~ km. of fertile Chinese land had become part of Burma, but there is no question of not recognising it. The question of Simla Convention is different because the Chinese National Government did not recognise it. The 1941 Line we have recognised in a spirit of friendship and mutual accommodation, based on actual jurisdiction, but if you say we must recognise something which

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no Central Chinese Government has done, we have to leave the problem as it is. It is not that we want to deceive and want India to give up some territory. The question should be settled on the basis of surveys, watersheds, actual control, river valleys, river basins, and living and customs of the local inhabitants.

Sardar Swaran Singh: This question of local customs and life of the people is a ticklish yardstick. On these border lines, there are always shades of similarity etc., among the people of both the sides.

CHF: Such examples can be given.

CY: The Sino-Burmese border cuts across the nationalities residing there. Kawas, Mismis, etc., live on both sides of the Sino-Burmese border. Relations between these two sides must grow and cannot be prevented. The same case would be on the Sino-Indian border. By customs, etc., we do not mean that all Tibetans must go to China; In future, Tibetans should be living on both sides of the Sino-Indian border. There are large number of Chinese in Calcutta while there are many Indians in Shanghai and they live in friendly relationship.

Sardar Swaran Singh: We would like many more Indians to go to China.

CY: We would welcome them.
